



Notification Waiver Determination

Kennards Hire – Skylift Hire & Rentals

Acquisition	Kennards Hire Pty Limited (Kennards Hire) applied for a notification waiver in respect of its proposed acquisition of 100% of the business assets of Skylift Hire & Rentals Pty Ltd (Skylift), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	16 July 2026

Parties to the Acquisition	The acquirer, Kennards Hire, supplies a broad range of equipment hire services across Australia and New Zealand. This includes general construction and trade equipment (including heavy machinery), power (including generators) and site services equipment (such as pumps), access equipment, materials handling, and site solutions (such as site offices and portable toilets). Kennards Hire supplies equipment to a broad range of sectors, including construction, infrastructure and civil projects, mining and resources, general equipment hire, energy, and events. Skylift supplies equipment rental in the Albury-Wodonga region. Skylift's offering largely centres around access equipment (including boom lifts and scissor lifts), and it also offers a further general range of construction and trade equipment, and event based hire equipment. Skylift primarily supplies access equipment and services to the construction and infrastructure sectors, as well as general hire and events.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is limited geographic overlap between the parties in the supply of general and access equipment hire services in the Albury-Wodonga region b. there are alternative providers of the relevant services on a local, regional, and national basis.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act